

Attorneys' Fees

Paragraph 22 of the settlement agreement provides that the prevailing party in any legal action to enforce the agreement is entitled to recover their reasonable attorney's fees. The court finds plaintiffs are entitled to attorneys' fees as the prevailing party on this motion. Plaintiffs are awarded reasonable attorneys' fees in the amount of \$4,700.

Conclusion

Plaintiffs' motion is granted in part. Defendant is ordered to comply with Paragraphs 4, 5, 13, 15, and 20 of the settlement agreement within 60 days of service of notice of entry of order. The motion is otherwise denied. Plaintiffs are awarded attorneys' fees in the amount of \$4,700.

6. S-CV-0049529 Los Lagos Estates v. Le Garden Ha

The motion to release funds is dropped from calendar as moot as it was previously advanced and heard. (Law and Motion Minutes, Jan. 27, 2026 and Feb. 24, 2026.)

7. S-CV-0050671 Bente, Jennifer v. Granite Wellness Centers

Motion for Final Approval

Plaintiffs move for finally approving the parties' class action settlement. The motion is supported by insufficient notice. All moving papers and supporting documents shall be served and filed at least 16 court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).) Notice is extended by two court days when service is by electronic means, as it was here. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).)

Additionally, the moving papers indicate the 90-day deadline for class members to submit a claim will expire on April 27, 2026. The court will need updated information as to the total number of claims received after the expiration of the 90-day claim period.

The moving papers also indicate the settlement administrator has incurred \$42,553.66 in expenses and estimates the final overall expenses will be approximately \$84,897.21. However, this is significantly more than the amount the court preliminarily approved, which was \$58,575 or, if reminder notices were required, then \$64,100. The court intends to either (1) limit the settlement administration costs to those preliminarily approved or (2) take the difference in the amount claimed from the amount preliminarily approved from the attorneys' fees provided for in the parties' settlement, unless plaintiffs show cause why the court should change the amount of settlement administration costs. Plaintiffs may file and serve a supplemental brief on this issue, not to exceed 10 pages.

The motion for final approval is continued to **June 23, 2026 at 8:30 a.m. in Department 42**. Plaintiff shall file and serve notice of continued hearing and updated information